IN THE NATIONAL COMPANY LAW TRIBUNAL,

NEW DELHI BENCH, COURT-III

COMPANY PETITION NO. (CAA) - 246(ND)/2017

CONNECTED WITH

COMPANY APPLICATION NO. (CAA) - 99(ND)/2017

(Under Section 230-232 and other applicable provisions of the Companies Act, 2013 r/w the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016)

IN THE MATTER OF SCHEME OF AMALGAMATION

AMONGST

M/s. Ajay Fincap Consultants Private Limited

..... Petitioner Company No. 01/ Transferor Company No. 01

AND

M/s. Bhavya Aluminium Private Limited

..... Petitioner Company No. 02/ Transferor Company No. 02

AND

M/s. Grays Electronics Private Limited

..... Petitioner Company No. 03/ Transferor Company No. 03

AND

M/s. JMK Garments Private Limited

..... Petitioner Company No. 04/ Transferor Company No. 04

AND

M/s. Mahabali Farms Private Limited

..... Petitioner Company No. 05/ Transferor Company No. 05

AND

M/s. Mangal Kalas Services Private Limited

..... Petitioner Company No. 06/ Transferor Company No. 06

AND

M/s. Raunaq Textile Limited

..... Petitioner Company No. 07/ Transferor Company No. 07

AND

M/s. SAP Compusoft Private Limited

..... Petitioner Company No. 08/ Transferor Company No. 08

AND

M/s. TRV Impex Private Limited

..... Petitioner Company No. 09/ Transferor Company No. 09

AND

M/s. Viable Management Consultants Private Limited

..... Petitioner Company No. 10/ Transferor Company No. 10

AND

M/s. VNR Softech Private Limited

..... Petitioner Company No. 11/ Transferor Company No. 11

WITH

M/s. Rishi Infratech Private Limited

..... Petitioner Company No. 12/ Transferee Company

AND

THEIR RESPECTIVE CREDITORS AND SHAREHOLDERS

Order Pronounced On: 04.12.2024

CORAM:

SHRI BACHU VENKAT BALARAM DAS, HON'BLE MEMBER (JUDICIAL)

SHRI ATUL CHATURVEDI, HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Petitioner	:	Mr. Rakesh Kumar, Ms. Preeti Kashyap, Mr. Ankit Sharma, Mr. Varun Pandit, Mr. Yash Dhawan, Advs.
For the IT Department	:	
For the OL	:	Mr. Kartikeya Asthana, Adv.
For the RD	:	Ms. Shankari Mishra, Ms. Jyoti Khurana, Advs

ORDER

PER: ATUL CHATURVEDI, MEMBER (TECHNICAL)

1. The present Second Motion Petition is filed jointly by **M/s. Ajay Fincap Consultants Private Limited** (Petitioner Company No. 01/ Transferor Company No. 01), **M/s. Bhavya Aluminium Private Limited** (Petitioner Company No. 02/ Transferor Company No. 02), **M/s. Grays Electronics Private Limited** (Petitioner Company No.

03/ Transferor Company No. 03), **M/s. JMK Garments Private Limited** (Petitioner Company No. 04/ Transferor Company No. 04), **M/s. Mahabali Farms Private Limited** (Petitioner Company No. 05/ Transferor Company No. 05), **M/s. Mangal Kalas Services Private Limited** (Petitioner Company No. 06/ Transferor Company No. 06), **M/s. Raunaq Textile Limited** (Petitioner Company No. 07/ Transferor Company No. 07), **M/s. SAP Compusoft Private Limited** (Petitioner Company No. 08/ Transferor Company No. 08), **M/s. TRV Impex Private Limited** (Petitioner Company No. 09/ Transferor Company No. 09), **M/s. Viable Management Consultants Private Limited** (Petitioner Company No. 10/ Transferor Company No. 10), **M/s. VNR Softech Private Limited** (Petitioner Company No. 11/ Transferor Company No. 11), **M/s. Rishi Infratech Private Limited** (Petitioner Company No. 12/ Transferee Company) under Sections 230-232 of the Companies Act, 2013 (Act) read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (Rules) for the Sanction of the proposed Scheme of Amalgamation amongst the Transferor Companies and Transferee Company and their respective shareholders and creditors (Scheme).

The Registered office address of each Petitioner Company is situated in the NCT of Delhi and therefore, it is under the jurisdiction of the National Company Law Tribunal, New Delhi.

2. **M/s. Ajay Fincap Consultants Private Limited** (Petitioner Company No. 01/ Transferor Company No. 01), bearing CIN: U70100DL2014PTC266567 was incorporated on 19/03/2014 under the provisions of the Companies Act, 2013, as a Private Company Limited by Shares (Non-govt. Company) with the Registrar of Companies, NCT of Delhi and Haryana. The registered office address of Petitioner Company No. 1 is situated at 52/1, Sarai Kale Khan, Delhi-110013. The Authorized Share Capital of the Company is Rs. 1,00,000/- divided into 10,000 equity shares of Rs. 10 each and the Issued, Subscribed and paid-up share capital of the Company is Rs. 1,00,000/- divided into 10,000 equity shares of Rs. 10 each.

3. **M/s. Bhavya Aluminium Private Limited** (Petitioner Company No. 02/ Transferor Company No. 02), bearing CIN: U70100DL2009PTC187325 was incorporated on 05/02/2009 under the provisions of the Companies Act, 1956, as a Private Company Limited by Shares (Non-govt. Company) with the Registrar of Companies, NCT of Delhi and Haryana. The registered office address of Petitioner Company No. 2 is situated at G-14, Maharani Bagh, South Delhi, Delhi-110065. The Authorized Share Capital of the Company is Rs. 38,00,000/- divided into 3,80,000 equity shares of Rs. 10 each and the Issued, Subscribed and paid-up share capital of the Company is Rs. 37,63,230/- divided into 3,76,323 equity shares of Rs. 10 each.
4. **M/s. Grays Electronics Private Limited** (Petitioner Company No. 03/ Transferor Company No. 03), bearing CIN:U70100DL2007PTC160529 was incorporated on 15/03/2007 under the provisions of the Companies Act, 1956, as a Public Company Limited by Shares (Non-govt. Company) with the Registrar of Companies, NCT of Delhi and Haryana. The registered office address of Petitioner Company No. 3 is situated at F-10 Hauz Khas Enclave, South Delhi, Delhi-110016. The Authorized Share Capital of the Company is Rs. 6,00,000/- divided into 60,000 equity shares of Rs. 10 each and the Issued, Subscribed and paid-up share capital of the Company is Rs. 3,10,000/- divided into 31,000 equity shares of Rs. 10 each.
5. **M/s. JMK Garments Private Limited** (Petitioner Company No. 04/ Transferor Company No. 04), bearing CIN: U70100DL2007PTC164797 was incorporated on 15/06/2007 under the provisions of the Companies Act, 1956, as a Private Company Limited by Shares (Non-govt. Company) with the Registrar of Companies, NCT of Delhi and Haryana. The registered office address of Petitioner Company No. 4 is situated at F-10 Hauz Khas Enclave, South Delhi, Delhi-110016. The Authorized Share Capital of the Company is Rs. 3,00,000/- divided into 30,000 equity shares of Rs. 10 each and the Issued, Subscribed

and paid-up share capital of the Company is Rs. 2,50,000/- divided into 25,000 equity shares of Rs. 10 each.

6. **M/s. Mahabali Farms Private Limited** (Petitioner Company No. 05/ Transferor Company No. 05), bearing CIN: U70100DL2008PTC180577 was incorporated on 08/07/2008 under the provisions of the Companies Act, 1956, as a Private Company Limited by Shares (Non-govt. Company) with the Registrar of Companies, NCT of Delhi and Haryana. The registered office address of Petitioner Company No. 5 is situated at G-14, Maharani Bagh, South Delhi, Delhi-110065. The Authorized Share Capital of the Company is Rs. 2,50,00,000/- divided into 25,00,000 equity shares of Rs. 10 each and the Issued, Subscribed and paid-up share capital of the Company is Rs. 3,50,000/- divided into 35000 equity shares of Rs. 10 each.
7. **M/s. Mangal Kalas Services Private Limited** (Petitioner Company No. 06/ Transferor Company No. 06), bearing CIN: U70100DL2007PTC169857 was incorporated on 25/10/2007 under the provisions of the Companies Act, 1956, as a Private Company Limited by Shares (Non-govt. Company) with the Registrar of Companies, NCT of Delhi and Haryana. The registered office address of Petitioner Company No. 6 is situated at 106, Samman Bazar, Bhogal, South Delhi, Delhi-110014. The Authorized Share Capital of the Company is Rs. 25,00,000/- divided into 2,50,000 equity shares of Rs. 10 each and the Issued, Subscribed and paid-up share capital of the Company is Rs. 24,10,200/- divided into 2,41,020 equity shares of Rs. 10 each.
8. **M/s. Raunaq Textile Limited** (Petitioner Company No. 07/ Transferor Company No. 07), bearing CIN: U70100DL1993PTC253843 was incorporated on 03/11/1993 under the provisions of the Companies Act, 1956, as a Private Company Limited by Shares (Non-govt. Company) with the Registrar of Companies, NCT of Delhi and Haryana. The registered office address of Petitioner Company No. 7 is situated at G-14, Maharani Bagh, South Delhi, Delhi-110065. The Authorized Share Capital of the Company is Rs. 3,00,00,000/- divided

into 30,00,000 equity shares of Rs. 10 each and the Issued, Subscribed and paid-up share capital of the Company is Rs. 1,01,95,070/- divided into 10,19,507 equity shares of Rs. 10 each.

9. **M/s. SAP Compusoft Private Limited** (Petitioner Company No. 08/ Transferor Company No. 08), bearing CIN: U65100DL2008PTC173025 was incorporated on 22/01/2008 under the provisions of the Companies Act, 1956, as a Private Company Limited by Shares (Non-govt. Company) with the Registrar of Companies, NCT of Delhi and Haryana. The registered office address of Petitioner Company No. 8 is situated at G-14, Maharani Bagh, South Delhi, Delhi-110065. The Authorized Share Capital of the Company is Rs. 2,25,00,000/- divided into 22,50,000 equity shares of Rs. 10 each and the Issued, Subscribed and paid-up share capital of the Company is Rs. 1,97,37,500/- divided into 19,73,750 equity shares of Rs. 10 each.
10. **M/s. TRV Impex Private Limited** (Petitioner Company No. 09/ Transferor Company No. 09), bearing CIN: U70100DL2008PTC178454 was incorporated on 22/05/2008 under the provisions of the Companies Act, 1956, as a Private Company Limited by Shares (Non-govt. Company) with the Registrar of Companies, NCT of Delhi and Haryana. The registered office address of Petitioner Company No. 9 is situated at 52/1, Sarai Kale Khan, Delhi-110013. The Authorized Share Capital of the Company is Rs. 1,00,00,000/- divided into 10,00,000 equity shares of Rs. 10 each and the Issued, Subscribed and paid-up share capital of the Company is Rs. 51,00,000/- divided into 5,10,000 equity shares of Rs. 10 each.
11. **M/s. Viable Management Consultants Private Limited** (Petitioner Company No. 10/ Transferor Company No. 10), bearing CIN: U70100DL2008PTC180362 was incorporated on 02/07/2008 under the provisions of the Companies Act, 1956, as a Private Company Limited by Shares (Non-govt. Company) with the Registrar of Companies, NCT of Delhi and Haryana. The registered office address of Petitioner Company No. 10 is situated at 106, Samman Bazar, Bhogal, South Delhi, Delhi-110014. The Authorized Share Capital of

the Company is Rs. 4,00,00,000/- divided into 40,000 equity shares of Rs. 10 each and the Issued, Subscribed and paid-up share capital of the Company is Rs. 60,37,500/- divided into 6,03,750 equity shares of Rs. 10 each.

12. **M/s. VNR Softech Private Limited** (Petitioner Company No. 11/ Transferor Company No. 11), bearing CIN: U70100DL2006PTC155357 was incorporated on 09/11/2006 under the provisions of the Companies Act, 1956, as a Private Company Limited by Shares (Non-govt. Company) with the Registrar of Companies, NCT of Delhi and Haryana. The registered office address of Petitioner Company No. 11 is situated at 52/1, Sarai Kale Khan, Delhi-110013. The Authorized Share Capital of the Company is Rs. 3,05,00,000/- divided into 30,50,000 equity shares of Rs. 10 each and the Issued, Subscribed and paid-up share capital of the Company is Rs. 2,97,50,000/- divided into 29,75,000 equity shares of Rs. 10 each.
13. **M/s. Rishi Infratech Private Limited** (Petitioner Company No. 12/ Transferee Company), bearing CIN: U70102DL2010PTC210185 was incorporated on 03/11/2010 under the provisions of the Companies Act, 1956, as a Private Company Limited by Shares (Non-govt. Company) with the Registrar of Companies, NCT of Delhi and Haryana. The registered office address of Petitioner Company No. 12 is situated at 21, Ring Road, Third Floor, Front Portion, Lajpat Nagar-IV, Delhi-110024. The Authorized Share Capital of the Company is Rs. 5,00,00,000/- divided into 50,00,000 equity shares of Rs. 10 each and the Issued, Subscribed and paid-up share capital of the Company is Rs. 1,23,93,750/- divided into 12,39,375 equity shares of Rs. 10 each.
14. It is stated that the Transferee Company viz., **M/s. Rishi Infratech Private Limited** has moved the necessary second motion Petition **CP (CAA) – 246(ND)/2017** connected with the first motion Application being **CA (CAA) –99(ND)/2017**, before the National Company Law Tribunal, New Delhi.
15. Affidavits in support of the above petition have been sworn by Mr. Ajay Singh, Authorised Signatory of Petitioner Company No. 1, Mr.

Rohit Kumar, Authorised Signatory of Petitioner Company No. 2, No. 4 and No. 9, Mr. Anand Gupta, Authorised Signatory of Petitioner Company No. 3, No. 7 and No. 8, Mr. Ishwar Anand, Authorised Signatory of Petitioner Company No. 6, No. 10 and No. 11, Mr. Rajesh Varma, Authorised Signatory of Petitioner Company No. 5, Mr. Rajesh Gupta, Authorised Signatory of Petitioner Company No. 12, who have been authorized vide board resolutions for all the Petitioner Companies and have been duly filed, along with the petition.

16. The Board of Directors of all the Petitioner Companies in their separate meetings approved and adopted the Scheme of Amalgamation of **M/s. Ajay Fincap Consultants Private Limited** (Petitioner Company No. 01/ Transferor Company No. 01), **M/s. Bhavya Aluminium Private Limited** (Petitioner Company No. 02/ Transferor Company No. 02), **M/s. Grays Electronics Private Limited** (Petitioner Company No. 03/ Transferor Company No. 03), **M/s. JMK Garments Private Limited** (Petitioner Company No. 04/ Transferor Company No. 04), **M/s. Mahabali Farms Private Limited** (Petitioner Company No. 05/ Transferor Company No. 05), **M/s. Mangal Kalas Services Private Limited** (Petitioner Company No. 06/ Transferor Company No. 06), **M/s. Raunaq Textile Limited** (Petitioner Company No. 07/ Transferor Company No. 07), **M/s. SAP Compusoft Private Limited** (Petitioner Company No. 08/ Transferor Company No. 08), **M/s. TRV Impex Private Limited** (Petitioner Company No. 09/ Transferor Company No. 09), **M/s. Viable Management Consultants Private Limited** (Petitioner Company No. 10/ Transferor Company No. 10), **M/s. VNR Softech Private Limited** (Petitioner Company No. 11/ Transferor Company No. 11), **M/s. Rishi Infratech Private Limited** (Petitioner Company No. 12/ Transferee Company) in accordance with the terms of the Scheme of Amalgamation.

17. The circumstances which necessitate the said scheme of amalgamation are as under:

a. *"The proposed Scheme will result in formation of a larger Company enabling further growth and development of the businesses of the said Companies. The Scheme will enable the undertakings and business of the said Companies to obtain greater facilities possessed and enjoyed by one large Company compared to small Companies for raising capital, securing and conducting trade and business on favorable terms and other related benefits.*

b. *The proposed Scheme will enable the Companies concerned to rationalize and streamline their management, businesses and finances and lead to a better economic control, over the running and management of the businesses and undertakings of the sald. Company.*

c. *The businesses of the Transferor Companies and the Transferee Company could be combined conveniently and advantageously and in such a manner so as to take up the activities, which will relate more to the business of the Transferee Company.*

d. *The proposed scheme will result in reduction of overheads and other expenses, reduction in administrative and procedural work, eliminate duplication of work, transaction cost, better and more productive utilization of various resources and will enable the undertakings concerned to effect internal economies and optimize productivity.*

e. *The proposed Scheme will contribute in furthering and fulfilling the objects of the Companies concerned and enabling the optimum growth and development of their combined businesses.*

f. *With the enhanced capabilities and resources at its disposal, the Amalgamated Company will have greater flexibility in market and to meet customer needs and will be able to compete more effectively, thus, further strengthening its market posisjon in domestic and international markets.*

g. *The amalgamation will enable the Companies to pool in their financial, managerial, technical and other resources and use the*

financial, managerial, technical, and marketing and distribution expertise of each other."

18. This Tribunal by its order dated 31.08.2017 dispensed with the requirement from convening and holding of the meetings of the Equity Shareholders, Secured Creditors and Un-Secured Creditors of all the Petitioner Companies, as sought through first motion application.
19. The Second Motion petition has been moved by the Petitioner Companies in connection with the Scheme of Amalgamation. This Tribunal vide order dated 12.10.2017 had directed to issue notice to the Regional Director (Northern Region), Ministry of Corporate Affairs, Registrar of Companies, NCT of Delhi and Haryana, Ministry of Corporate Affairs, Income Tax Department, Official Liquidator attached to the High Court of Delhi and Such other Sectoral Regulatory Authorities who shall be affected by the proposed Scheme and to such other Objector(s), if any and had also directed that the notice be published in two newspapers i.e., "Business Standard" (English) and "Veer Arjun" (Hindi) Delhi Edition on 23.10.2017.
20. It is submitted by the Petitioner Companies that in compliance of the above-stated directions, the Petitioners duly filed an Affidavit of Service by confirming that the aforesaid Notices of the present Company Petition were published in "Business Standard" (English) and "Veer Arjun" (Hindi) Delhi Edition on 23.10.2017.

    It is further submitted that the Petitioner Companies also served the Notices of the present Company Petition to all the statutory authorities as per the direction given by this Tribunal dated 12.10.2017.
21. The Regional Director vide it's report dated 18.04.2018 has not objected to the proposed scheme of the Amalgamation but has made certain observations. The petitioner companies filed a reply in response to the observations made by the Regional Director, wherein the petitioner companies have given an undertaking to appropriately comply with the observations made by the Regional Director.

22. The Official Liquidator vide it's report dated 12.12.2017 has submitted to this tribunal stating therein that they have no objection with respect to the present Scheme of Amalgamation.
23. The Income Tax Department vide it's report has not objected to the proposed scheme of the Amalgamation but has made certain observations. The petitioner companies has filed a reply in response to the observations made by the Income Tax Department, wherein the petitioner companies have given an undertaking to appropriately comply with the observations made by the Income Tax Department.
24. The Petitioner Companies have undertaken to maintain the account in accordance with and as per the method of Amalgamation prescribed in the applicable Indian Accounting Standard as notified under Section 133 of the Companies Act, 2013 read together with Paragraph 3 of the Companies (Indian Accounting Standard) Rules, 2016 and other accounting principles generally accepted in India.

    In this regard, Certified true copies of Certificates obtained from the Statutory Auditors of all the Petitioner Companies confirming the accounting treatment proposed in the Scheme of Amalgamation are filed along with the Petition.
25. It is submitted that the Directors, of either of the company, have no interest in the proposed Scheme of Amalgamation, except as Shareholder, in general, the extent of which will appear from the Register of the Director's shareholdings maintained by the respective Companies. Shri Rohit Kumar is the common director of the Transferor Nos. 2, 4 and 9, Shri Anand Gupta is the common director of the Transferor Nos. 3, 7 and 8, Shri Ishwar Anand is the common director of the Transferor Nos.6, 10 and 11.
26. It is further submitted that if any suit, appeal or other proceedings of whatever nature by or against the Transferor Companies be pending, the same shall not abate, be discontinued or be in any way prejudicially effected by reason of the transfer of the undertaking of the Transferor Companies or of anything contained in this scheme but

the said proceedings may be continued, prosecuted and enforced by or against the Transferee.

27. The scheme of amalgamation shall not in any manner effect the rights and interests of the creditors of the Transferor Companies which may be deemed to be prejudicial to their interest and in particular the secured and statutory creditors of the Transferor Companies who shall continue to enjoy and hold charge upon their respective securities and properties.

28. No investigation proceedings have been instituted and are pending in relation to either of the Petitioner Companies under Sections 210, 212(1) to (7) & (11) to (17), 214, 215, 216(1) & (3) 217, 219, 220, 223, 224(1), (3) and (4) and 225 or any other applicable provisions of the Companies Act, 2013.

    None of the Petitioner Companies is registered or required to be registered under the Monopolies & Restrictive Trade practices Act, 1969/Competition Act, 2002. The scheme does not require the approval of the government under the provision of the MRTP Act/Competition Act.

    This Joint Second Motion Petition is made bona fide and in the interest of justice and no one will be prejudiced if orders are made/or directions are given as prayed for.

29. **Analysis and Finding**

i. After considering the reports, we are of the considered view that the Scheme is not prejudicial to the interest of the equity shareholders and creditors of the Transferor Companies and the Transferee Company and the Scheme will be beneficial to the Transferor Companies, Transferee Company and their respective shareholders and creditors.

ii. The shareholders of the petitioner company are the best judges of their interest, fully conversant with market trends, and therefore, their decision should not be interfered with by this Tribunal for the reason that it is not a part of the judicial function to examine entrepreneurial activities and their commercial decisions. It is well

settled that the Tribunal evaluating the Scheme, of which sanction is sought under Section 230-232 of the Companies Act of 2013, will not ordinarily interfere with the corporate decisions of companies approved by shareholders and creditors.

iii. It has also been affirmed in the petition that the Scheme is in the interest of both the Transferor Companies, Transferee Company, their respective shareholders, creditors, employees and all concerned.

In view of the foregoing discussions and upon considering the approval accorded by the members and creditors of the Petitioner companies to the proposed Scheme, there appears to be no impediment in sanctioning the present Scheme.

30. Consequently, the sanction is hereby granted to the Scheme under Section 230 to 232 of the Companies Act, 2013.

i. The Petitioners shall however remain bound to comply with the statutory requirements in accordance with the law.

ii. Notwithstanding the above, if there is any deficiency found or, the violation committed, qua any enactment, statutory rule or regulation, the sanction granted by this Tribunal to the scheme will not come in the way of action being taken in accordance with the law, against the concerned persons, directors and officials of the petitioners.

iii. While approving the Scheme as above, we further clarify that this order should not be construed as an order in any way granting exemption from payment of stamp duty, taxes or any other charges if any, and payment in accordance with law or in respect to any permission/compliance with any other requirement which may be specifically required under any law.

iv. In compliance with the requirement of Section 232(7) of the Act, the transferee company shall until the full implementation of the Scheme of Amalgamation file a statement every year in Form CAA 8 along with the required fee with the Registrar of Companies as

prescribed in the Companies (Registration offices and fees) Rules 2014 within 210 days from the end of each financial year.

v. The appointment date (Appointed Date means the opening of business hours on 01.04.2017, the date from which the Scheme will be deemed to be effective) as proposed in the Scheme of Amalgamation i.e., 01.04.2017 is confirmed by this Tribunal.

31. This Tribunal does further order: -

i. That the Transferor Companies shall stand dissolved without following the process of winding-up; and

ii. That all properties, rights and powers of the Transferor Companies be transferred without further act or deed to the Transferee Company and accordingly, the same shall pursuant to Section 230-232 of the Companies Act, 2013 be transferred to and vested in the Transferee Company for all intents, purposes and interest of the Transferor Companies subject nevertheless to all changes now affecting the same; and

iii. That all the liabilities, (if any) and powers, engagements, obligations and duties of the Transferor Companies shall pursuant to Section 232(3) of the Companies Act,2013 without further act or deed be transferred to the Transferee Company and accordingly the same become the liabilities and duties of the Transferee Company; and

iv. That all proceedings now pending by or against the Transferor Company shall be continued by or against the Transferee Company; and

v. That all the employees of the Transferor Companies in service, on the date immediately preceding the date on which the scheme takes effect, i.e. the effective date, shall become the employees of the Transferee Company on such date, without any break or interruption in service and upon terms and condition not less favorable than those subsisting in the concerned Transferor Companies on the said date; and

vi. That the Petitioner Companies, shall within thirty days of the date of the receipt of this order cause certified copy of this Order to be delivered to the Registrar of Companies for registration and on such certified copy being so delivered, the Transferee Company shall be deemed to be transferred; and

vii. That any person interested shall be at liberty to apply to the Tribunal in the above matter for any directions that may be necessary.

32. Accordingly, the Scheme stands **sanctioned** and **CP(CAA)/246(ND)/2017** stands **disposed of** in the above terms. Let copy of the order be served to the parties.

Sd/-
(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

Sd/-
(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)